

25STLC02474 25STLC02474

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC02474 Hearing Date: August 19, 2026 Dept: 26

TENTATIVE RULING:

Defendant Ronalyn Valmonte's Motion to Vacate Default and Default Judgment is granted. The default entered on 10/20/2025 and default judgment entered on 05/05/2026 are hereby vacated.

Defendant is to file and serve the proposed Answer to the Complaint within 20 days of this ruling.

Trial is scheduled for 08/18/2027 at 8:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

On March 27, 2025, Plaintiff State Farm Mutual Automobile Insurance Company ("Plaintiff") filed the instant action against Defendant Ronalyn Valmonte ("Defendant"). Following Defendant's failure to file a responsive pleading, the Court entered Defendant's default on October 17, 2025 and default judgment on May 5, 2026.

Defendant filed and served the instant Motion to Vacate Default and Default Judgment on July 23, 2026. No opposition has been filed to date.

Discussion

Defendant moves to vacate the entry of default and default judgment pursuant to Code of Civil Procedure section 473, subdivision (b), or

section 473.5.

Code of Civil Procedure section 473(b)

Under Code of Civil Procedure, section 473, subdivision (b), an application for discretionary relief on account of party fault must be made within a reasonable time, but no more than six months after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the moving party's or counsel's mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.) When addressed to entry of default and default judgment, the request must be made within six months of entry of default. (*Pulte Homes Corporation v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980.) The six-month deadline is jurisdictional and not subject to tolling. (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42.)

The instant Motion was filed more than nine months after entry of default and, therefore, cannot be granted under section 473, subdivision (b).

Code of Civil Procedure section 473.5

Code of Civil Procedure section 473.5 states in relevant part:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5, subd. (a).)

Additionally, the motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

The Motion is supported by Defendant's declaration, which attests that the address listed on the Proof of Substitute Service has not been their residence for more than ten years. The Proof of Substitute Service states that Defendant was sub-served by leaving the papers at 45532 Pickford Ave., Lancaster, California, which it characterizes as the “DMV verified address,” on August 23, 2025. (Proof of Substitute Service, filed 09/09/25, ¶¶4-5.) It goes on to state that the papers were then mailed to that address on August 26, 2025. (Id. at ¶5.) The proof of service is attested to by a registered process server. (Id. at ¶7.) A proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence of the facts stated in the return. (Cal. Evid. Code, § 647; see *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Defendant declares that 45532 Pickford Aveune is Defendant's parents' address and that DefwnsNR has not lived there since 2014. (Motion, Valmonte Decl., ¶¶2-4.) Defendant only learned of this action in June 2026 after being informed by family members that mail directed to her was sent to that address. (Id. at ¶2.) Defendant further attests that she was not evading service and does not recall being served with any papers. (Id. at ¶6.) Finally, the Motion is accompanied by a copy of Defendant's proposed Answer to the Complaint. (Id. at Exh. B.) The Motion, therefore, satisfies all the requirements of section 473.5 by demonstrating that Defendant lacked actual notice of the action in time to respond and should be allowed an opportunity to do so.

Conclusion

Defendant Ronalyn Valmonte's Motion to Vacate Default and Default Judgment is granted. The default entered on 10/20/2025 and default judgment entered on 05/05/2026 are hereby vacated.

Defendant is to file and serve the proposed Answer to the Complaint within

20 days of this ruling.

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Moving party to give notice.